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Attorneys for Narcotics Anonymous World Services, Inc., as Trustee

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES, CENTRAL DISTRICT

In the Matter of:

THE NARCOTICS ANONYMOUS FELLOWSHIP INTELLECTUAL PROPERTY TRUST

Case No.: 20STPB00821

NOTICE OF DEMURRER AND DEMURRER TO PETITION FOR (1) INSTRUCTIONS; (2) ORDERS FIXING COMPENSATION OF TRUSTEE; (3) REMOVAL AND REPLACEMENT OF TRUSTEE; AND (4) SURCHARGE; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF JONATHAN H. PARK

Date: May 14, 2020
Time: 10:00 a.m.
Dept.: 5
Judge: Hon. Michael C. Small

[Hearing Date Reserved with Dept.]

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TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on May 14, 2020, at 10:00 a.m., or as soon thereafter as the matter may be heard, in Department 5 of the above-entitled court located at 111 North Hill Street, Los Angeles, California 90012, Respondent Narcotics Anonymous World Services, Inc. ("World Services" or the "Trustee"), as Trustee of The Fellowship Intellectual Property Trust (the "Trust"), will and hereby does demur to the Petition for (1) Instructions; (2) Orders Fixing Compensation of Trustee; (3) Removal and Replacement of Trustee; and (4) Surcharge (the "Petition for Instructions") brought by The Autonomous Region of Narcotics Anonymous ("Petitioner").

This Demurrer is made pursuant to Code of Civil Procedure sections 430.10, subdivision (e) and 430.30 on the grounds that the Petition for Instructions fails to state facts sufficient to constitute a cause of action under Probate Code sections 16420 and 17200. Only a trustee or beneficiary may bring an action under those Probate Code sections, and Petitioner is neither the trustee nor the beneficiary of the Trust. Furthermore, Petitioner has not followed the Trust's procedure for the revocation and reassignment of the Trustee's rights and responsibilities.

This Demurrer is based upon this Notice, the Demurrer, the accompanying Memorandum of Points and Authorities, as well as all papers, pleadings and records on file in this action, and such other and further argument and evidence as may be presented at or before the time of the hearing.

Dated: March 2, 2020

HOLLAND & KNIGHT LLP

By: _____
Jonathan H. Park,
Attorneys for Narcotics Anonymous World Services, Inc., as Trustee

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DEMURRER

Pursuant to Code of Civil Procedure sections 430.10, subdivision (e) and 430.30, Respondent Narcotics Anonymous World Services, Inc. hereby demurs to the Petition for Instructions, filed herein on January 28, 2020, on the following grounds:

DEMURRER TO FIRST CAUSE OF ACTION FOR INSTRUCTIONS

1. The First Cause of Action fails to state facts sufficient to constitute a cause of action under Probate Code sections 16420 and 17200.

DEMURRER TO SECOND CAUSE OF ACTION FOR ORDERS FIXING COMPENSATION OF TRUSTEE

2. The Second Cause of Action fails to state facts sufficient to constitute a cause of action under Probate Code sections 16420 and 17200.

DEMURRER TO THIRD CAUSE OF ACTION FOR REMOVAL AND REPLACEMENT OF TRUSTEE

3. The Third Cause of Action fails to state facts sufficient to constitute a cause of action under Probate Code sections 16420 and 17200.

DEMURRER TO FOURTH CAUSE OF ACTION FOR SURCHARGE

4. The Fourth Cause of Action fails to state facts sufficient to constitute a cause of action under Probate Code sections 16420 and 17200.

Dated: March 2, 2020

HOLLAND & KNIGHT LLP

By: _____
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MEMORANDUM OF POINTS AND AUTHORITIES

I. BRIEF FACTUAL BACKGROUND AND SUMMARY OF ARGUMENTS

The Fellowship of Narcotics Anonymous (the "Fellowship") established The Fellowship Intellectual Property Trust (the "Trust") in 1993 following the resolution of litigation against an individual for the unauthorized printing and distribution of Narcotics Anonymous literature and only after many years of controversy and pain concerning that issue in the late 1980's and early 1990's.

The Trustee of the Trust is Narcotics Anonymous World Services, Inc., a California corporation ("World Services" or the "Trustee"). (Petition for Instructions ("Pet. for Inst."), Ex. A, Trust, p. 1, Art. II.) Further background behind both the establishment of World Services and the later establishment of the Trust appointing World Services as Trustee is set forth on pages 6 and 7 of Exhibit A to the Petition.

Since 1993, World Services as Trustee has dutifully administered the Trust according to the purpose of the Trust for the benefit of the Fellowship as a whole, which is the sole beneficiary of the Trust. (Pet. for Inst., Ex. A, Trust, p. 1, Art. II.) The purpose of the Trust was to formally "reaffirm and restate" the prior informal duties and responsibilities of World Services with respect to the intellectual properties of the Fellowship, setting forth that World Services as Trustee was "to hold and administer all recovery literature and other intellectual properties of the Fellowship of Narcotics Anonymous in a manner that will help addicts find recovery from the disease of addiction and carry that message of recovery to the addict who still suffers, in keeping with the Twelve Steps and Twelve Traditions of NA." (*Id.* at p. 1, Art. I, Sections 2 and 4.)

Unfortunately, it appears that certain dissident individuals, including Bill Fritz, the purported "authorized representative" of The Autonomous Region of Narcotics Anonymous ("Petitioner"), have chosen to renew their attacks on the core principles of the Trust; this time by seeking the removal of World Services as Trustee, among other relief, in their Petition for Instructions. The gist of Petitioner's (false) allegations is that "World Services has and continues to breach its duties as Trustee of the Trust, including by self-dealing and exploiting the NA's

Literature for its own financial benefit and to the detriment of Petitioner and addicts throughout the world...." (Pet. for Inst., ¶ 5, p. 2, lines 21-24.)

Besides the allegations being untrue, the Petition for Instructions is critically flawed. First and foremost, Petitioner lacks standing to assert the four causes of action set forth in the Petition for Instructions. Only a trustee or beneficiary may assert causes of action under Probate Code sections 16420 and 17200, and Petitioner is neither the trustee nor the beneficiary of the Trust.

Petitioner identifies itself as "The Autonomous Region of Narcotics Anonymous, an interested party of The Narcotics Anonymous Fellowship Intellectual Property Trust." (Pet. for Inst., p. 1, lines 19-20.) However, there is no such regional group known as "The Autonomous Region of Narcotics Anonymous" that has ever applied for or been recognized by the Fellowship, and no such group is part of the World Service Conference. But even if the Court were to consider this allegation as true for purposes of this Demurrer, it makes no difference. The sole beneficiary of the Trust is the Fellowship of Narcotics Anonymous as a whole, and only the Fellowship as a whole has standing to bring the four causes of action against the Trustee as set forth in the Petition for Instructions.

Second, the Petition for Instructions is further flawed because the Trust sets forth a specific procedure for the revocation and reassignment of the Trustee's rights and responsibilities, which first requires a written petition to be submitted to the World Service Conference, the Fellowship's biannual world-wide service conference, that is either signed by a third of the regional service committees recognized as voting participants in the most recent biennial meeting of the World Service Conference or signed by the World Board and having been approved by no less than two-thirds of the members of the World Board. (Pet. for Inst., Ex. A, Trust, p. 18, Art. VI, Section 1.) Petitioner, by its own admission, has not followed that procedure. (Pet. for Inst., ¶ 20, p. 6, lines 19-23.)

Based on the foregoing, Respondent Narcotics Anonymous World Services, Inc. respectfully requests that the Demurrer be sustained. Furthermore, the Demurrer should be sustained without leave to amend since Petitioner cannot plead around these defects.

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II. LEGAL STANDARD

A demurrer lies where the complaint on its face does not state facts sufficient to constitute a cause of action, or where the complaint "has included allegations that clearly disclose some defense or bar to recovery." (Code Civ. Proc., § 430.10, subdiv. (e); *Casterson v. Sup. Ct.* (2002) 101 Cal.App.4th 177, 183.) In reviewing the sufficiency of a complaint against a demurrer, a court treats the demurrer as admitting all material facts properly plead, but not contentions, deductions, or conclusions of fact or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may also consider any matters that may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer should be granted when a complaint, as here, does not contain allegations of every fact essential to state a cause of action. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 122.) Where a plaintiff's lack of standing to sue appears on the fact of the complaint or from matters judicially noticeable, a general demurrer lies for failure to state a cause of action. (*County of Fresno v. Shelton* (1998) 66 Cal.App.4th 996, 1009.)

III. PETITIONER HAS FAILED TO STATE FACTS SUFFICIENT TO CONSTITUTE A CAUSE OF ACTION UNDER PROBATE CODE SECTIONS 16420 AND 17200

A. Petitioner Lacks Standing

All four causes of action asserted by Petitioner are brought pursuant to either Probate Code sections 16420, 17200, or both. (Pet. for Inst., p. 7, lines 6-19.) Under the plain language of Probate Code sections 16420 and 17200, only a trustee or beneficiary may bring an action under these sections. Petitioner is neither the trustee nor the beneficiary of the Trust, and thus lacks standing to pursue the Petition for Instructions.

Probate Code section 16420 states: "(a) If a trustee commits a breach of trust, or threatens to commit a breach of trust, **a beneficiary or cotrustee of the trust** may commence a proceeding for any of the following purposes that is appropriate...." (Prob. Code, § 16420, subdiv. (a), emphasis added.)

Likewise, Probate Code section 17200(a) states: "(a) Except as provided in Section 15800, **a trustee or beneficiary of a trust** may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust." (Prob. Code, § 17200, subdiv. (a), emphasis added.)

By its own admission on the face of its pleading, Petitioner is neither the trustee nor the beneficiary of the Trust. Petitioner alleges that: "**Narcotics Anonymous World Services, Inc.**...is and at all relevant times was the Trustee of the Trust." (Pet. for Inst., p. 2, lines 18-19, emphasis added.) Petitioner also attaches a copy of the Trust as an exhibit which states that: "**The Fellowship of Narcotics Anonymous as a whole** is the Beneficiary of the Trust." (Pet. for Inst., Ex. A, Trust, Article II, p. 1, emphasis added; see *Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1626-1627 ["...facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence"].)

Petitioner identifies itself as "The Autonomous Region of Narcotics Anonymous, **an interested party**." (Pet. for Inst., p. 1, line 19, emphasis added.) Petitioner cannot and does not allege that it is the Trustee "Narcotics Anonymous World Services, Inc." Petitioner cannot and does not allege that it is the Beneficiary "The Fellowship of Narcotics Anonymous as a whole."

At best (although the Trustee strongly disputes these allegations), Petitioner claims to be an "interested party." But the law is clear that only a trustee or beneficiary – not an "interested party" – has standing to pursue relief under Probate Code section 16420 and 17200. (Prob. Code, §§ 16420, subdiv. (a) & 17200, subdiv. (a) [note the California Legislature's omission of the term "interested party" from Sections 16420 and 17200].) Because Petitioner lacks standing, this Demurrer as to all four causes of action should be sustained.

B. Petitioner Has Not Followed the Trust's Procedure

Petitioner's third cause of action is for "World Services to be removed as Trustee of the Trust or compel the resignation of World Services as Trustee of the Trust, and appoint a new Trustee." (Pet. for Inst., p. 7, lines 12-13.) However, the Trust sets forth a specific procedure for

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the revocation and reassignment of the Trustee's rights and responsibilities, which first requires a written petition to be submitted to the World Service Conference that is either signed by a third of the regional service committees recognized as voting participants in the most recent biennial meeting of the World Service Conference or signed by the World Board and having been approved by no less than two-thirds of the members of the World Board. (Pet. for Inst., Ex. A, Trust, p. 18, Art. VI, Section 1.)

Petitioner, by its own admission, has not followed that procedure: "Petitioner did not first make a written petition to revoke World Services as Trustee at the biennial meeting of the World Service Conference...." (Pet. for Inst., ¶ 20, p. 6, lines 19-23.) So even assuming *arguendo* that Petitioner had standing to pursue the Trustee's removal, Petitioner should still be precluded from attempting to do so in this forum for failure to follow the Trust's procedure.

Based on the foregoing, Petitioner has failed to state facts sufficient to constitute a cause of action for instructions, for orders fixing compensation of trustee, for removal and replacement of trustee, or for surcharge under Probate Code sections 16420 and 17200. Thus, Respondent Narcotics Anonymous World Services, Inc. respectfully requests that the Demurrer as to the entire Petition for Instructions be sustained.

IV. THE DEMURRER SHOULD BE SUSTAINED WITHOUT LEAVE TO AMEND

Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under the substantive law. (*Seidler v. Municipal Court* (1993) 12 Cal.App.4th 1229, 1233.) Here, it is clear from the plain language of the Trust and Petitioner's own allegations that Petitioner is neither the trustee nor the beneficiary of the Trust. It is also undisputed that Petitioner failed to follow the Trust's procedure to remove World Services as Trustee. What remains for the Court's determination is a purely legal issue, which Petitioner cannot plead around: an "interested party" lacks standing to pursue relief under Probate Code sections 16420 and 17200. Thus, the Demurrer should be sustained without leave to amend. (*Schonfeldt v. State of California* (1998) 61 Cal.App.4th 1462, 1465 ["[i]f there is no liability as a matter of law, leave to amend should not be granted"].)

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V. CONCLUSION

Petitioner lacks standing to assert the four causes of action in the Petition for Instructions. Further, Petitioner has not followed the Trust's procedure for the revocation and reassignment of the Trustee's rights and responsibilities. Petitioner cannot plead around these defects. Therefore, Respondent Narcotics Anonymous World Services, Inc. respectfully requests that the Demurrer be sustained without leave to amend.

Dated: March 2, 2020

HOLLAND & KNIGHT LLP

By: _____
Jonathan H. Park,
Attorneys for Narcotics Anonymous World Services, Inc., as Trustee

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DECLARATION

I, Jonathan H. Park, declare as follows:

1. I am an attorney duly licensed to practice law before all courts in the State of California, and am a partner with the law firm of Holland & Knight LLP, attorneys of record for Respondent Narcotics Anonymous World Services, Inc. ("World Services"), as Trustee of The Fellowship Intellectual Property Trust (the "Trust"). If called as a witness, I could and would competently testify to the following facts based on my personal knowledge.

2. On February 27, 2020, I began the meet and confer process for this Demurrer by calling Michael D. Adams, attorney for Petitioner The Autonomous Region of Narcotics Anonymous, who did not answer, and so I left a voicemail requesting a return call. That same day, I sent Mr. Adams an email stating that I represented World Services as Trustee and asking him to return my call.

3. On February 28, 2020, not having received a response from Mr. Adams, I continued to make efforts to meet and confer by calling and leaving a voicemail for Proud Usahacharoenporn, another attorney for Petitioner. Later that day, Ms. Usahacharoenporn returned my call, and I informed her that her client lacked standing as an "interested party" to pursue the Petition for (1) Instructions; (2) Orders Fixing Compensation of Trustee; (3) Removal and Replacement of Trustee; and (4) Surcharge (the "Petition for Instructions").

4. I further stated that under the plain language of Probate Code sections 16420 and 17200, only a trustee or beneficiary may bring an action under these sections and that her client was neither the trustee or beneficiary of the Trust. I asked that her client agree to dismiss the Petition for Instructions with prejudice. I explained that World Services would be filing a demurrer if her client did not agree to dismiss the Petition for Instructions.

5. Ms. Usahacharoenporn stated that her client was a beneficiary of the Trust and, when pressed, advised that her client was specifically affiliated with the United States Service Committee of Narcotics Anonymous ("USSCNA). She stated, therefore, that her client would not be dismissing the Petition for Instructions.

6. I am informed and believe that the USSCNA has not been recognized by the Fellowship as a Zonal Forum or Service Committee at any level and is not a part of the World Service Conference.

I declare under penalty of perjury under the laws of the state of California that the foregoing is true and correct. Executed on March 2, 2020, at Los Angeles, California.



Jonathan H. Park

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PROOF OF SERVICE
BP 120478

STATE OF CALIFORNIA)
) ss.
COUNTY OF LOS ANGELES)

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 400 S. Hope Street, 8th Floor, Los Angeles, CA 90071.

On March 2, 2020, I served the foregoing document described as **NOTICE OF DEMURRER AND DEMURRER TO PETITION FOR (1) INSTRUCTIONS; (2) ORDERS FIXING COMPENSATION OF TRUSTEE; (3) REMOVAL AND REPLACEMENT OF TRUSTEE; AND (4) SURCHARGE; MEMORANDUM OF POINTS AND AUTHORITIES** on all interested parties in this action

☐ by placing true copies thereof in sealed envelopes addressed as stated on the attached mailing list.
☒ by placing ☐ the original ☒ a true copy thereof enclosed in a sealed envelope addressed as follows:

SEE ATTACHED SERVICE LIST

☒ **BY MAIL:** I enclosed the document(s) in a sealed envelope or package addressed to the persons at the addresses listed above and placed the envelope for collection and mailing, following our ordinary business practices. I am readily familiar with Holland & Knight LLP's practice for collecting and processing correspondence for mailing. On the same day that the correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service, in a sealed envelope with postage fully prepaid.

☐ **PERSONAL SERVICE (CCP §§ 1011, 2015.5):**

- ☐ I caused such document(s) to be delivered by hand to person(s) at the address listed above.
- ☐ I caused such document(s) to be delivered by hand to the office of the person(s) at the address listed above.
- ☐ I caused such document(s) to be delivered by hand to the person(s) at the address listed above.

☐ **OVERNIGHT COURIER (CCP §§ 1013(c), 2015.5)** I am readily familiar with the firm's practice of collection and processing correspondence for overnight courier. On the same day that correspondence is placed for collection and delivery, it is deposited in the ordinary course of business in a sealed envelope to the addressee(s), fully prepaid, and deposited at an office or a regularly utilized drop box of the overnight delivery carrier.

☐ **FACSIMILE (CCP §§ 1013(e), 2015.5, CRC 2008)** I caused the above referenced document to be transmitted by facsimile transmission from facsimile number (213) 896-2450 to the offices of the addressee(s) at the facsimile number(s) so indicated above. The transmission was reported as complete and without error. A copy of the transmission report issued by the transmitting facsimile machine is attached.

☐ **E-MAIL (CCP §§ 1013(a))** Based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the document(s) to be sent to the person(s) at the e-mail address(es) indicated above. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

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☒ (State) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on March 2, 2020, Los Angeles, California.

Kim Campbell
Print or Type Name

Signature

#73296189_v1

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